

This matter first came on for hearing on February 24, 2025. The Court declined to rule on the merits at that time, expressing concern that Ms. Gall had not signed the settlement agreement and was not participating in the motion as a moving party. The Court requested supplemental briefing and supporting evidence. Plaintiffs filed a Supplemental Brief and Supplemental Declaration of H. Scott Leviant on February 25, 2025.

Moon Law Group, PC acknowledges it is counsel of record for Plaintiff Allyssa Gall. Yet, counsel seeks to settle this lawsuit without the agreement of its client, a named Plaintiff. Counsel's supplemental briefing cites to authority which provides that if a trial court concludes that a plaintiff cannot suitably represent a class, the trial court should permit discovery and/or amendment of pleadings to add suitable representatives for the class. *Best Buy Stores, LP v. Superior Ct.* (2006) 137 Cal. App. 4th 772. That is not the situation here. Here, we have a named Plaintiff, represented by putative class counsel, who has not agreed to settle this case. Plaintiffs submit a Memorandum of Understanding Plaintiff Gall signed on August 9, 2024, and assert that this is sufficient to bind Ms. Gall to a Settlement Agreement she did not sign. It is contradictory to assert that Ms. Gall is both bound by the MOU, and also not participating in the Motion for Preliminary Approval despite being a named Plaintiff. The terms of the MOU provide that "The Settlement described in this Memorandum of Understanding is subject to court approval and shall be based on the terms and conditions set forth below." It also provides that "Until such time that the stipulated settlement agreement is executed by the Parties, this executed MOU shall be treated as an enforceable settlement agreement pursuant to California Code of Civil Procedure § 664.6." (MOU ¶ 17.) Here, all parties except Ms. Gall have since executed a stipulated settlement agreement. Plaintiffs are not seeking enforcement of the MOU pursuant to CCP § 664.6.

Counsel's Supplemental Declaration indicates that Ms. Gall refused to sign an earlier draft of the MOU because of the general release provision, but later agreed to revised terms. (Decl. Leviant ¶¶ 6-7.) Additionally, the Declaration indicates that counsel has not had any communication with their client Ms. Gall since December 4, 2024. (Decl. Leviant ¶¶ 9-10.) The instant Motion was filed January 22, 2024. The Court is concerned that Ms. Gall has not been informed that her attorneys are seeking preliminary approval of the settlement without her participation.

The Court cannot address the merits of the Motion until this issue is resolved. The Motion for Preliminary Approval is **DENIED** without prejudice.

JONES VS. COUNTY OF SHASTA, ET AL.

Case Number: 22CV-0199596

Tentative Ruling on Motion for Summary Judgement, or in the Alternative Summary Adjudication: This is an action alleging negligence/wrongful death, and negligent supervision, arising out of the death of Cody Jones (Decedent) while in custody of the Shasta County Jail. Plaintiff is Decedent's mother, Janet Jones. Plaintiff alleges that on April 14, 2021, Decedent was remanded to the custody of Shasta County Jail after a preliminary hearing at the Shasta County Superior Court. He was placed into a safety jail cell because he was believed to be suicidal. Decedent hung himself within an hour of being booked. Defendant County of Shasta (County) moves for summary judgment on the grounds that the County cannot be liable to Plaintiff under Government Code section 844.6. Plaintiff opposes the Motion.

Request for Judicial Notice. The County requests the Court take judicial notice of the electronic docket for Shasta County Superior Court criminal case No. CRF20-0007342. The request is granted.

Evidentiary Objections. Defendant has filed objections to three items of Plaintiff's evidence. The Court rules as follows:

1. Exhibit 10 - Sustained
2. Declaration of Richard Lichten - Overruled
3. Exhibit 14 - Sustained

Merits. Summary judgment may be granted where it is shown that the action has no merit or that there is no defense to the action. CCP § 437c(a). The court must determine from the evidence presented that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. CCP § 437c(c). The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. If the moving party carries this burden, it causes a shift, and the opposing party is then subject to its own burden of production to make a prima facie showing that a triable issue of material fact exists. *Id.*

In moving for summary judgment, a defendant has met his burden of showing that a cause of action has no merit if he has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The plaintiff may not rely upon the mere allegations or denials of his pleadings to show that a triable issue of material fact exists but, instead, must set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto. CCP § 437c(o); *Aguilar, supra*, at 849. Summary adjudication follows the same standard, but applies to one or more causes of action within an action, if the party contends that the cause of action has no merit, or that one or more defendants did not owe a duty to the plaintiff. CCP § 437c(f). When an MSJ is unopposed, the court cannot grant summary judgment unless defendant meets its initial burden. *See Johnson v. Superior Court* (2006) 143 Cal.App.4th 207, 305. The scope of the defendant's initial burden is defined by the pleadings. *See 580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.

Defendant has met its initial burden of establishing that Plaintiff's First and Second Cause of Action have no merit, as they are both stated as general tort claims for negligence against the County, a public entity. The Tort Claims Act provides that a public entity is not liable for an injury "[e]xcept as otherwise provided by statute...." (Gov.Code, § 815.) Certain statutes do provide expressly for public entity liability in circumstances that are somewhat parallel to the potential liability of private individuals and entities but, as past cases have explained, "The intent of the Act is not to expand the rights of plaintiffs in suits against governmental entities, but to confine potential governmental liability to rigidly delineated circumstances." (*Brown v. Poway Unified School Dist.* (1993) 4 Cal.4th 820, 829.) *Zelig v. Cnty. of Los Angeles* (2002) 27 Cal. 4th 1112, 1127–28. Moreover, Gov. Code § 844.6 specifically provides that, absent an applicable exception, a public entity is not liable for an injury to any prisoner. Plaintiff has not alleged any applicable exception. The burden thus shifts to Plaintiff to show a triable issue of material fact as to each cause of action.

Plaintiff's Complaint alleges two causes of action: 1) Negligence/Wrongful Death, and 2) Negligent Supervision. Plaintiff's First Cause of Action alleges that while Decedent was under the care and supervision of the County, Decedent hung himself in a safety cell within an hour of being booked. Plaintiff alleges the County had a duty to Decedent while he was under their care, the County breached that duty when Decedent was able to hang himself while in the safety cell – due to lack of proper training and supervision and lack of proper policies and procedures, and the failure to follow reasonable policies and procedures. Plaintiff alleges this led to Decedent being pronounced brain dead and ultimately dying after being taken off life support. Plaintiff's Second Cause of Action alleges the County had full custody and control over Decedent and had a duty to supervise and implement measures to safeguard the health and safety of Decedent. Plaintiff alleges the County negligently supervised Decedent and failed to exercise reasonable measures to safeguard his health and safety, allowing him to hang himself. Plaintiff alleges the county had the ability to take reasonable measures to safeguard the health and safety of Decedent, but failed to do so.

Government Code section 844.6 provides that: “Notwithstanding any other provision of this part, except as provided in this section and in Sections 814, 814.2, 845.4, and 845.6, or in Title 2.1 (commencing with Section 3500) of Part 3 of the Penal Code, a public entity is not liable for: ...2) an injury to any prisoner.” Here, it is undisputed that Decedent was a prisoner as defined in Gov. Code section 844. Therefore, unless a specific statutory exception applies, the County is not liable for an injury to Decedent. Plaintiff's Complaint does not allege any statutory exception in association with either the First or Second Cause of Action.

Although it is not pled in the Complaint, Plaintiff's Opposition argues for the application of Government Code section 855.8(d) here to impose liability against the County. Gov. Code section 855.8(d), provides “Nothing in this section exonerates a public employee from liability for injury proximately caused by his negligent or wrongful act or omission in administering any treatment prescribed for mental illness or addiction.”

Here, Plaintiff has named only the County in its action. Previously, an individual employee (Joshua Mills) was named, but he was dismissed without prejudice on December 1, 2022. There are no active claims against any County employee. Thus, Gov. Code § 855.8(d) does not apply, as it is explicitly directed to a public employee, not a public entity. Moreover, Plaintiff has made no allegations in the Complaint or in the Opposition that any party was “administering any treatment prescribed for mental illness or addiction.” Instead, Plaintiff alleges the following “failures are at issue: 1) the failure to inspect the safety smock for tears or frays, 2) the failure to inspect the safety cell for possible anchor points, and 3) the failure to perform adequate monitoring.” (Opp. 6:6-9.) Plaintiff argues that the “treatment prescribed” here is that Decedent was assessed to be suicidal and placed in a safety cell for protection. (Opp. 6:11-12.) The Court finds that the jail staff's assessment of suicide risk and placement of the prisoner in a safety cell for his own protection, is not the *administration of treatment for mental illness* or addiction contemplated in the statute. Inspecting a safety smock for tears or frays, inspecting a cell for possible anchor points, and monitoring of the prisoner are not “administration of treatment for mental illness.” In sum, Gov. Code § 855.8(d) does not apply here as an exception to Gov. Code § 844.6.

Plaintiff's second argument, again not alleged in the Complaint, is that Government Code section 845.6 applies here as an exception to Gov. Code § 844.6, to attach liability to the County. In

relevant part, Gov. Code § 845.6 provides that a public entity is not liable for injury proximately caused by the failure of the employee to furnish or obtain medical care for a prisoner in his custody ... except if the employee knows or has reason to know that the prisoner is in need of immediate medical care and he fails to take reasonable action to summon such medical care.

Here, Plaintiff argues that it is “highly improbable to nearly impossible” for Decedent to tear his tear-resistant smock, twist it, secure it to an ¼ inch gap and hang himself, all in six minutes. (Opp. 18: 4-6.) Plaintiff argues this creates questions of material fact as to whether Defendant timely and reasonably obtained medical assistance for Decedent due to lack of documentation. Plaintiff notably does not argue that Defendant knew or had reason to know that the prisoner was in need of immediate medical care and failed to take reasonable action to summon it. Plaintiff does not present any evidence that an employee of Defendant knew or had reason to know that Decedent was in need of immediate medical care and failed to take reasonable action to summon it. Instead, Plaintiff argues that if Defendant had monitored and documented their observations of Decedent, and if they had more comprehensive training, policies and procedures, they would’ve been able to respond more quickly.

Plaintiff has not met its burden to establish triable issues of material fact with respect to whether any employee of Defendant knew or had reason to know Decedent needed immediate medical care, and failed to take reasonable action to summon it. Moreover, Defendant has established County employees took immediate action to summon medical care when Decedent was discovered hanging in his cell. The evidence establishes that six minutes after a 1:34 p.m. welfare check, at 1:40 p.m. Deputy Serda conducted a welfare check on Decedent. (UMF 41.) Deputy Serda noticed Decedent had placed his safety smock behind the window partition of the door, and observed the top of Decedent’s head slightly below the window. (UMF 42.) Deputy Serda started knocking at the door and calling Decedent’s name, but obtained no response. (UMF 43.) Deputy Serda then called for assistance, opened the safety cell’s door, and radioed for additional officers and medical staff. (UMF 44, 45, 48.) Deputies applied chest compressions to Decedent starting at 1:43 p.m. (UMF 53.) At 1:45 p.m., the jail’s medical staff applied the AED. (UMF 54.) Fire rescue arrived at 1:49 p.m, the jail’s lifesaving unit arrived at 1:50 p.m., and Decedent was transported to Mercy Medical Center at 1:50 p.m. (UMF 55, 56.) All of the preceding facts are “Undisputed” by Plaintiff, with the exception of UMF 48, which is disputed as to completeness.

The Court finds that there is no issue of material fact remaining with respect to whether a County employee knew or had reason to know that the prisoner was in need of immediate medical care and failed to take reasonable action to summon such medical care. The evidence establishes that the County took reasonable action to summon medical care immediately upon discovering the prisoner was in need of care. It is undisputed that Decedent was discovered hanging in his cell at 1:40 p.m., Deputies were administering chest compressions at 1:43 p.m., and Decedent was transported to the hospital at 1:50 p.m. Plaintiff does not argue that this reaction was too slow, or was a failure to take reasonable action to summon medical care. Instead, Plaintiff argues that Deputies should’ve been observing Decedent more frequently, or even continuously to prevent his actions. The statute does not impose such a requirement. It requires a public entity to take reasonable action to summon medical care when it knows or has reason to know that prisoner is in need of it. The undisputed evidence establishes that County did so.

The County’s Motion for Summary Judgment is **GRANTED**. A proposed order has been lodged and will be executed.